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Case Number: 25STLC08466 Hearing Date: August 10, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Crystal Reddick's (1) Motion to Compel Responses to Special Interrogatories; Request for Order Awarding Monetary Sanctions; and (2) Motion to Compel Responses to Requests for Production of Documents; Request for Order Awarding Monetary Sanctions, are granted in part and denied in part.

Defendant Tokyo Wako, Inc. is ordered to serve responses to the Special Interrogatories, Set One, and Request for Production of Documents, Set One, within 20 days' service of this order. Plaintiff's requests for sanctions are denied.

Analysis:

Plaintiff Crystal Redick ("Plaintiff") served Special Interrogatories, Set One, and Requests for Production of Documents, Set One, on Defendant Tokyo Wako, Inc. ("Defendant") on February 16, 2026. (Motions, Gramajo Decl., Exh. 1.) Despite a meet and confer effort, to date, Defendant has not served verified responses to the discovery requests. (Id. at ¶¶4-5 and Exh. 2) Plaintiff filed the instant (1) Motion to Compel Responses to Special Interrogatories; Request for Order Awarding Monetary Sanctions; and (2) Motion to Compel Responses to Requests for Production of Documents; Request for Order Awarding Monetary Sanctions on June 26, 2026. The Motions were served on Defendant through Attorney Sammy Zreik, Esq. by electronic mail on the same day. No opposition has been filed to date.

There is no requirement for a prior meet and confer effort before a motion to compel initial responses can be filed. (Code Civ. Proc., §§

2030.290, 2031.300.) Further, the motions can be brought at any time after the responding party fails to provide the responses. (Code Civ. Proc., §§ 2030.290, 2031.300.) Based on Defendant's failure to timely respond to the propounded discovery, Plaintiff is entitled to an order compelling service of verified responses to the discovery requests without objections.

Plaintiff moves for sanctions pursuant to Code of Civil Procedure section 2030.010 and points to

Ellis v. Toshiba America Information Systems, Inc. (2013) 218 Cal.App.4th 853 for the proposition that when a party's discovery misconduct results in Court intervention, "the losing party presumptively should pay a sanction to the prevailing party." (Ellis v. Toshiba America Information Systems, Inc. (2013) 218 Cal.App.4th 853, 878.) Ellis, however, involved an attorney's disobedience of court discovery orders and failure to meet and confer regarding court-ordered discovery, which is not the case here. (Id. at 878.) This Motion simply concerns a failure to serve initial discovery responses, with no court orders at issue.

In City of Los Angeles v. Pricewaterhousecoopers, LLP (2024) 17 Cal.5th 46, the Supreme Court observed:

It is already well-established that a court may not rely on [Code of Civil Procedure] section 2030.030 to override the limitations prescribed by any other applicable sanctions provision in the [Civil Discovery] Act. A court may invoke its independent authority to impose sanctions under sections 2030.010 and 2031.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision. And where it invokes that authority, it is constrained by the long-settled rules generally governing the imposition of discovery sanctions under the Act.

(City of Los Angeles v. Pricewaterhousecoopers, LLP (2024) 17 Cal.5th 46, 74-75.) The moving statutes, Code of Civil Procedure sections 2030.290 and 2031.300, only make sanctions available when a party unsuccessfully makes or opposes a motion to compel responses. (See Code Civ. Proc., § 2030.290, subd. (c); § 2031.300, subd. (c).) Defendant filed no opposition to the instant Motions and cannot be sanctioned under sections 2030.290 or 2031.310.

Nor has Plaintiff shown that Defendant's failure to serve discovery responses is "an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." Therefore, the Court declines to invoke its independent authority to impose sanctions under Code of Civil Procedure sections 2023.010 and 2023.030.

Conclusion

Plaintiff Crystal Reddick's (1) Motion to Compel Responses to Special Interrogatories; Request for Order Awarding Monetary Sanctions; and (2) Motion to Compel Responses to Requests for Production of Documents; Request for Order Awarding Monetary Sanctions, are granted in part and denied in part.

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Moving party to give notice.